

24NWLC32185 24NWLC32185

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-22

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Case Number: 24NWLC32185 Hearing Date: July 22, 2026 Dept: Y

24NWLC32185: WELLS FARGO BANK, N.A. vs NORMA REYES

Tentative Ruling:

The Court has read and reviewed all moving documents filed by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") in support of its motion for summary judgment, including the separate statement and supporting evidence. The Court has also reviewed the amended moving papers filed by Plaintiff at the Court's request.

Plaintiff's motion for summary judgment was filed on April 15, 2025 and set for hearing on July 14, 2025. The hearing was continued by the Court from July 14, 2025 to October 7, 2025 and then from October 7, 2025 to February 10, 2026 to cure minor deficiencies noted by the Court. On February 10, 2026, the Court continued the motion again.

Due to scheduling conflicts, the Court, on its own motion, continued the hearing from June 3, 2026 to July 17, 2026 and then from July 17, 2026 to July 22, 2026. No opposition has been filed by Defendant Norma Ryes ("Defendant").

The Court finds that Plaintiff has met the initial burden of showing that there are no defenses to its cause of action for breach of contract by proving each element of the cause of actions entitling Plaintiff to summary judgment.

Plaintiff has shown with admissible evidence that Defendant was issued the subject credit card by Plaintiff, Defendant was the only person who authorized charges to be made on the account, Defendant sent monthly statements for the subject account, and that there is no record of any unresolved disputes on the account. (Plaintiff's Amended Separate Statement, Undisputed Material Facts Nos. [UMF] 1-9.) The evidence also shows that Defendant's last payment on the subject account was on June 15, 2023 and that Defendant owes Plaintiff the unpaid balance on the credit account of \$5,867.19. (Id., UMF Nos. 10-12.)

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to any of the elements of the causes of action for breach of contract or that there is any defense thereto required by Code of Civil Procedure section 437c(p)(1).

The Court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS Plaintiff's Motion for Summary Judgment as to its cause of action for breach of contract.

Judgment is hereby entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Norma Reyes in the principal sum of \$5,867.19, plus reasonable attorney's fees and costs. The Proposed Order will be signed by the Court.

Plaintiff must submit a Memorandum of Costs and a declaration in support of reasonable attorney's fees as well as a Proposed Judgment for the Court's review and signature.

Plaintiff to give notice.